

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN FRANCE

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in France, grounded in the planning and environmental system and documented campaigns

This guide is written in English but uses the French legal terms you will actually encounter (permis de construire, enquête publique, autorisation environnementale, and so on), each defined on first use and in the Glossary. It describes the system in mainland France; the overseas territories and Alsace-Moselle have some particularities — check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, and each is defined in parentheses right where you first meet it — no flipping to the back required.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action directly determines project outcomes in France. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. In January 2018, after decades of opposition and legal action by environmental associations, the French government abandoned the **Notre-Dame-des-Landes** airport near Nantes — a project that would have destroyed 1,700 hectares of *bocage* and wetlands. Across the country, communities have forced projects to be refused, redesigned, suspended, or abandoned through the administrative courts and public pressure. These outcomes were not inevitable; communities made them happen.

But most communities don't know HOW to make opposition effective. They send one objection during the **enquête publique** (public inquiry), then give up. They assume "the *préfet* will refuse it" without building public pressure. They generate coverage without a strategy. They organise people and then lose them to burnout after four months.

This guide shows what actually works — in the French system.

If You're New to This — Don't Be Shy

Nobody is born knowing how an environmental assessment works. The communities in this guide weren't experts when the projects landed on them — they learned it, meeting by meeting, filing by filing, because the thing at stake was theirs. That is the only qualification this work requires.

So if this is your first fight: don't worry, and don't be shy. You are allowed to file comments, demand documents, call

reporters, and pack a hearing. The participation windows exist for you, not for specialists. You will make mistakes; every winning campaign did. Start small — one conversation, one document request, one meeting — and let the guide carry you from there. You want it? Go and get it.

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

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STEP 1: TARGET IDENTIFICATION
↓
STEP 2: DOCUMENTATION (proof of harm)
↓
STEP 3: LOCAL OPPOSITION BUILD (organised community)
↓
STEP 4: LEGAL CHALLENGES (procedure / court pressure)
↓
STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)
Each step amplifies the others
Multi-tactic pressure compounds toward victory
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Why the legal step matters so much here: France gives communities several unusually strong levers. A specialist system of **administrative courts** (*tribunal administratif* → *cour administrative d'appel* → *Conseil d'État*) reviews the legality of planning and environmental decisions and can annul them. An independent **Autorité environnementale** gives a public opinion on the quality of a project's impact study. And, powerfully, a project that will harm **protected species** (*espèces protégées*) may only proceed with a special *dérogation* that must clear a high legal bar — including a **“compelling reason of major public interest”** (*raison impérieuse d'intérêt public majeur*, RIIPM). Environmental associations with official approval (*agrément*) have standing to bring these cases. No French campaign should be planned without understanding these.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because they depend on the development's money or jobs, rely on the developer's own impact study, or face strong political pressure to say yes.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins refusals, conditions, redesigns, and delay. Where there is genuine misconduct — bribery, an undisclosed interest, the offence of *prise illégale d'intérêts* — that is a different and more serious problem, covered separately in Section 11.

This is covered in Sections 10 and 11. Read them before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in France, how a decision gets made, why the money so often points toward “yes,” and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

France is a centralised state with strong local government layered beneath it. Which body decides depends on what is being built and how big it is.

- **The commune (town or village), led by the *maire* and *conseil municipal*.** The commune adopts the local zoning plan — the **PLU** (*plan local d'urbanisme*) — which sets what may be built where, and the *maire* issues the **permis de construire** (building permit) for most ordinary construction. Most everyday building fights start here.
- **The intercommunal body (*EPCI/communauté de communes*)** — increasingly holds planning powers, adopts the intercommunal PLU (PLUi), and runs some services.
- **The *département* and the *région*** — handle certain infrastructure, transport, and land-planning matters, and distribute some funding.
- **The State, through the *préfet*.** The *préfet* (the State's representative in each *département*) is the key decision-

maker for the environment and for large projects: the *préfet* issues the **autorisation environnementale** (the single environmental authorisation, below), regulates classified industrial and agricultural installations (**ICPE** (*installations classées pour la protection de l'environnement* — the regime for industrial and agricultural installations that can harm the environment), *installations classées pour la protection de l'environnement*), and signs the *dérogation* to harm protected species. For nationally important infrastructure, the State also makes the **déclaration d'utilité publique (DUP)** (the act declaring a project to be in the public interest, enabling expropriation for major infrastructure) that enables expropriation.

So which level decides your project? - A house, an extension, a small building → the **commune** (a *permis de construire* from the *maire*). - A factory, a large livestock unit, a quarry, a waste facility, a big warehouse → the **State via the préfet** (an **ICPE** authorisation and/or an **autorisation environnementale**). - A motorway, an airport, a big energy or water project → the **State**, usually with an upstream **public debate** (*débat public*), an **enquête publique**, and a **DUP**. - Anything harming a **protected species** or a **Natura 2000** (the European network of protected sites; projects affecting them face extra assessment) site, or a wetland (*zone humide*) → needs a special environmental *dérogation* signed by the *préfet* — a powerful point of challenge.

The independent and expert bodies

Two are especially important for opposition: - **The Autorité environnementale (Ae)** — an independent authority that gives a **public opinion** (*avis*) on the quality of a project's impact study (*étude d'impact*): whether the impacts are properly identified and the mitigation adequate. A critical *avis* is valuable ammunition. - **The Commission nationale du débat public (CNDP)** — organises **public debate** on the largest projects, upstream of any authorisation. Also relevant: the regional environment department (**DREAL**), which instructs many files for the *préfet*, and the **commissaire enquêteur** (below).

How a decision is actually made — the journey of a project

1. **(Large projects) Public debate** — the **CNDP** may organise a *débat public* before the project is fixed.
2. **Impact study and independent opinion** — the developer (*maître d'ouvrage*) prepares an **étude d'impact** (the developer's legally required assessment of a project's environmental effects); the **Autorité environnementale** issues its public *avis* on it.
3. **Enquête publique (public inquiry)** — the file is placed on public inquiry, run by an independent **commissaire enquêteur**. **Anyone can submit observations**, on paper or online. At the end, the *commissaire enquêteur* gives a reasoned *avis* (favourable or unfavourable) — an unfavourable *avis* is a significant obstacle and a useful legal hook.
4. **Decision** — the **permis de construire** (from the *maire*) or the **autorisation environnementale** / **ICPE** authorisation (from the *préfet*), often bundling water law, protected species, and Natura 2000 into one act.
5. **Legal challenge** — an unlawful decision can be challenged before the **administrative courts** by a *recours pour excès de pouvoir* (an action to annul an unlawful administrative act), and suspended in urgent cases by a *référé-suspension*. Deadlines are strict (commonly **two months** from publication/display).

The rulebook — the laws that decide the outcome

- **The PLU** (local zoning plan) and the *Code de l'urbanisme* — what may be built where.
- **The Code de l'environnement** — the impact assessment, the **autorisation environnementale**, **ICPE**, water law (*loi sur l'eau*), **Natura 2000**, and the protection of species.
- **The protection of espèces protégées** — it is an offence to destroy protected species or their habitat; a *dérogation* requires that there is **no satisfactory alternative**, that the species' favourable conservation status is not harmed, and that the project answers a **compelling reason of major public interest (RIIPM)**. This three-part test is a frequent and powerful ground of challenge (it is exactly what the A69 motorway litigation turned on).
- **The séquence ERC** (*éviter, réduire, compenser* — avoid, reduce, compensate) — the hierarchy a project must follow for its environmental impacts.

Follow the money — why the system often leans toward “yes”

- **Communes** are funded partly by the **taxe foncière** (property tax) and gain from the **taxe d'aménagement** (a development levy) and from the jobs and activity a project brings — so there is often local pressure to approve.
- **The State** promotes growth, industry, housing, and infrastructure, and can classify a project as being in the public interest.
- **Developers** are usually well-resourced companies (sometimes large concession groups) that can pay for the consultants and lawyers who prepare and defend the project.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised,

evidenced pressure.

The overseers — who watches the decision-makers

- **The administrative courts** (*tribunal administratif, cour administrative d’appel, Conseil d’État*) — can **annul** an unlawful decision. At the hearing, an independent *rapporteur public* gives a reasoned opinion.
- **The Autorité environnementale** — independent scrutiny of impact studies.
- **The Cour des comptes** (audit) and the **Défenseur des droits** (rights ombudsman).
- **Anti-corruption and transparency bodies** — the **HATVP** (which holds officials’ declarations of interests and assets), the **AFA** (the national anti-corruption agency), and the **PNF** (the national financial prosecutor) (see Section 11).

The Clock — Every Deadline That Matters

The process runs on short, unforgiving windows, and one principle governs them all: **object early and comprehensively**. Arguments never placed in the participation record are far weaker later — points not raised in the public windows can be barred or discounted — so file everything, in every window, and keep every receipt. Confirm each figure below against the actual notice or with counsel the day it becomes relevant; notices set the live dates.

Stage	Your window	The trap
Enquête publique	Commonly one month or more — set by the arrêté	Points not in the enquête record weaken the recours
Recours gracieux (to the authority)	Two months — and it preserves the court deadline	A free second chance most campaigns forget to use
Recours before the administrative court	Two months from publication/display of the authorisation	Filing late is fatal; display starts clocks quietly
Référé-suspension	Immediately, with the recours, before works start	After the site is cleared, suspension is moot
Access to documents (CADA route)	Administration should answer within one month	Silence = refusal = appealable; use CADA

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In France, the variable most likely to push a campaign above these ranges is a well-founded legal challenge before the administrative courts — above all on the **protected-species dérogation** or a defective impact study (Step 4).

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (EUR)	What “Success” Means
Documentation Only	5-10%	3-4 months	€4K	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	€13K	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	€15-45K	Slow, often loses on its own
Media Only	10-15%	3-6 months	€5K	Public knows, but no action
Docs + Opposition	25-35%	12 months	€17K	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	€48K	Stronger legal arguments, slower
Opposition + Legal	35-45%	12-18 months	€52K	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	€18K	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	€52K	Authorisation annulled/refused/modified or project delayed

Key insight: All five steps together = 3-4x more effective than any single step.

A note on legal cost: an approved environmental association (with agrément) has standing to litigate, and specialist environmental lawyers and the federations can keep costs down; a référé-suspension* is comparatively quick and cheap —

so the “Legal” figures above are not a hard floor.*

STEP 1: TARGET IDENTIFICATION

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: “Environmental damage” But: “The project drains 12 hectares of *zone humide* (wetland) and destroys the breeding habitat of a protected species listed in the *arrêté* of protected species.”

Not: “Pollution” But: “The classified installation (ICPE) will emit an estimated [X] of fine particles over the nearest homes of 1,500 people, in an area already near the air-quality limit.”

Not: “Community harm” But: “The project takes 40 hectares of farmland and cuts the commune’s green corridor (*trame verte*) in two.”

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. A protected species, a wetland, or a Natura 2000 site also opens a **specific legal front** (the *dérogation* test).

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **The maire** — for the **permis de construire** for most ordinary construction.
- **The préfet** — for the **autorisation environnementale**, the **ICPE** authorisation, the water-law authorisation, and the **protected-species dérogation**. This is the key figure for larger and environmentally sensitive projects.
- **The State** (ministers / *Conseil d’État* decree) — for the **DUP** and the largest infrastructure.

Write it down concretely: “The *préfet* of [département] will sign the *autorisation environnementale* after the *enquête publique* closing on [date]. The Autorité environnementale has given its *avis*. A *dérogation espèces protégées* is required.”

Question 3: What Specific Action Stops It?

Not: “Stop the project” But: “Persuade the *commissaire enquêteur* to give an unfavourable *avis*, and the *préfet* to refuse” — or, if refusal is unrealistic, “obtain strict conditions and real *compensation* under the *séquence ERC*.”

Not: “Protect the environment” But: “Show the *dérogation espèces protégées* is unlawful because the project does not meet the RIIPM test, or that the *étude d’impact* is inadequate.”

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if the decision is unlawful, become the ground for a *recours*.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. The **enquête publique** runs for a set period (often around a month) with a strict observation window. After the authorisation is published or displayed, the deadline to challenge it before the administrative court is **short — commonly two months** (and specific rules apply to *permis de construire* and to environmental authorisations). Map every date: the *enquête publique* dates, the *avis* of the *commissaire enquêteur*, the decision, and the two-month window to challenge it.

Question 5: Are There Documented Financial or Policy Pressures?

This is the tilted-system assessment question. Know it BEFORE you organise: - Is there strong national or local **policy** in favour (an industrial, housing, or infrastructure priority; a project declared of public interest)? - Is the *étude d’impact* funded and written by the developer only? - Does the commune depend on the project for jobs, the *taxe d’aménagement*, or activity? - Has the project been given a **DUP** or otherwise labelled in the public interest — strengthening the State’s hand? - Does the developer have deep resources for consultants, lawyers, and appeals?

Why this matters: if strong policy pressure or developer-controlled assessment is present, opposition must overcome different barriers (Section 10). It doesn’t mean opposition can’t work — it means realistic expectations and, often, a focus on conditions, compensation, and legal defects rather than a straight political refusal.

Plug these in — where to find and track the file:

Find and track the project: - The **enquête publique** file (at the *mairie* or on the departmental *préfecture* / *Géorisques* / national participation portals). - The **Autorité environnementale**'s *avis* (published online).

Records: the right of access to administrative documents, and the **CADA** (*Commission d'accès aux documents administratifs*) if access is refused.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

The Three Documentation Layers

Documentation turns vague opposition (“This is bad”) into undeniable evidence (“This specific harm will occur to these specific people/places at these specific costs”). Success comes from three layers working together.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

What it is: comprehensive documentation of existing conditions BEFORE the project begins.

Why it matters: developers claim “the site is already degraded” or that baseline is unimportant. Baseline documentation proves what was there — and it cannot be reconstructed later.

Documented case — the wetlands of Notre-Dame-des-Landes

The Grand Ouest airport near Nantes was to be built on around 1,700 hectares of *bocage* and wetlands. Supporters treated the land as ordinary farmland; opponents made its ecological value impossible to ignore. Naturalists, farmers, and environmental associations documented the site as a living **wetland** (*zone humide*) — the source of several watercourses, rich in **protected species** (*espèces protégées*) and fed by good-quality groundwater — evidence that went straight into the official record.

That documentation shifted the debate. Inspectors appointed by the environment ministry judged the project “**surdimensionné**” (oversized) and pointed to a lesser-impact alternative; the wetland destruction and the weak cost-benefit case became central. After decades of opposition, occupation, and legal action by associations such as **France Nature Environnement**, the government **abandoned the airport in January 2018**.

Why it matters for you: the case for the airport rested on treating the land as empty. Documenting exactly what lived there — species, water, wetland function — is what took that argument apart.

Building your own baseline (typical process). Document existing conditions before the project starts, because a developer will claim a site is “already degraded” and baseline cannot be reconstructed later. A workable approach: monthly surveys across at least a season cycle — more if you can — of the site plus upstream/downstream reference points; a species inventory with grid references, flagging anything on the national list of **protected species** (*espèces protégées*) that the developer's *étude d'impact* omitted — the raw material for a *dérogation* challenge; proximity to any **Natura 2000** site, protected area, or **ZNIEFF** (an inventory zone of recognised ecological interest); and hydrology (pH, dissolved oxygen, temperature, seasonal flow) plus the extent of the **wetland** (*zone humide*). Typical cost is around €4,500 for an ecologist/*bureau d'études*, GPS, and water-testing supplies — reducible with knowledgeable volunteers. Dated seasonal photographs and grid-referenced maps make it credible.

LAYER 2: IMPACT ANALYSIS

What it is: detailed analysis of what specific harms will occur, based on the project description plus your baseline.

Why it matters: it shows not just “something bad” but “specifically THIS BAD in THIS WAY” — and it maps directly onto what the **étude d'impact** must properly assess.

Use the developer's own words and the assessment rules. Powerful, documentable weak points in French assessments include: - **Protected species.** If the project will destroy protected species or their habitat, it needs a **dérogation** meeting the three-part test (no alternative; no harm to conservation status; a compelling reason of major public interest, RIIPM). An assessment that hides or understates this is highly vulnerable — this is the ground on which the A69 motorway authorisations were annulled at first instance. - **The séquence ERC.** The project must show it has genuinely tried to **avoid** and **reduce** impacts before **compensating** — “compensation” offered in place of avoidance is a

classic weak point. - **The Autorité environnementale's avis.** A critical independent *avis* on the *étude d'impact* is powerful; quote it.

Convert each of the developer's admissions ("temporary disturbance," "limited habitat loss") into a quantified prediction against your baseline.

Outcome (illustrative): an *étude d'impact* found inadequate on species, water, or the ERC sequence can be sent back, adding months or years — or can ground the annulment of the authorisation by the administrative court.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of human-health and economic costs to the community.

Why it matters: decision-makers and the public respond to human cost. "X hectares affected" matters less than "an estimated 45 additional respiratory cases a year, and €X of health-system cost."

Method: use recognised air-quality modelling and the epidemiological literature to translate emissions into health outcomes, then attach costs. Public-health evidence and peer-reviewed studies let you estimate additional respiratory and cardiovascular cases and their cost for the affected population — additional asthma, hospital admissions, lost workdays, and total annual and lifetime cost.

Outcome (illustrative): an independent health analysis can move a commune, feed a critical *avis*, and force pollution-control conditions the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Engage an ecologist or *bureau d'études* (or use knowledgeable community members — naturalists, retired scientists, students); set a seasonal survey schedule; document conditions. **Deliverable:** a 20-30 page baseline report with species/habitat inventory, water-quality data, seasonal patterns, dated photographs (same spots across seasons), and grid-referenced maps. (The **Monitoring & Imagery** lens lists satellite and web-archiving tools to watch the site over time.)

Phase 2: Impact Analysis (Months 2-3)

Obtain the *étude d'impact* and the file from the *enquête publique*; identify specific impacts; test the study against the rules (protected species/*dérogation*, water, the ERC sequence, the Autorité environnementale's *avis*). **Deliverable:** a 20-30 page impact analysis with quantified predicted impacts, comparison to baseline, and the developer's own admissions quoted back.

Phase 3: Health/Economic Analysis (Months 3-4)

Identify affected populations; estimate health impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the decision.
 - **Only environmental data.** Add health and economic impacts — the arguments that move decision-makers and the public.
 - **No independent check.** A report the *préfecture* can dismiss as "activist material" is far stronger after an independent expert reviews it (budget €700-1,000).
 - **Ignoring the developer's own admissions.** Their *étude d'impact* is your best source; quote it against itself.
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Documentation Budget Breakdown (EUR)

Item	Cost	Notes
Ecologist / bureau d'études (baseline + species ID)	€2,900	Protected-species surveys
GPS / survey equipment	€350	Mapping/documentation
Water-quality testing supplies	€300	Sampling across seasons
Independent expert review	€800	Credibility
Printing/distribution	€250	Copies for decision-makers
TOTAL	€4,600	Reducible using knowledgeable community members

If You Can't Build a Whole Campaign — Smaller Moves That Still Count

Not everyone can chair an assembly or spend a year on this. An hour a week, or a single afternoon, is still useful. The most effective single act in this guide — filing a substantive objection into the official record before the deadline — takes one person and no organisation. These are the higher-leverage things one person can do, roughly ordered by effect per hour:

- **File one written objection in the participation window.** It enters the official file, the authority must respond to it, and an unanswered serious objection can become a legal defect later. Use the letter templates further down; attach one concrete fact — a figure from the study, a missing survey, the water source named. Keep the receipt.
- **Send the deadline to ten neighbours.** Forward the map's project dot, the comment deadline, and one line on what is at stake. Ten short objections from ten households carry more weight than one long one.
- **File one information request.** Ten minutes on the FOIA channel for the full file and the correspondence. The request is on the record and the response has a legal deadline; pass whatever arrives to anyone with more time.
- **Call the right official once.** Not an email — a call to the person who represents the affected area, giving the file number and one specific ask: return the study, impose a condition, hold the hearing.
- **Give one reporter one document.** The developer's own study admitting a harm, plus the deadline, is a story.
- **Photograph the site, dated, before work starts.** This cannot be redone later. It is baseline evidence a lawyer can use.
- **Circulate a petition aimed at the decision.** One that names the file, the ask, and the deadline, delivered before the vote, does more than a larger one that arrives after.

Each of these targets the official record and the deadline, and each works on its own. If others join, the same acts become the start of a fuller campaign.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Critical Insight About Organising

Most opposition campaigns fail not because they can't build opposition, but because opposition burns out after 4-8 months. You need structures that prevent it.

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don't join movements from flyers; they join from relationships. Identify the 15-20 people most affected or interested. **Phone** each (not email) for an hour. Ask: "What's your biggest concern about this project?" Listen — don't pitch. Ask what they'd be willing to do. Each person has a different concern (property value, health, water, farmland, a place they love, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern.: - **Property/amenity group** — property values, traffic, noise, loss of a place - **Water/agriculture group** — wetlands, water take, farmland - **Health group** — air quality, dust, noise - **Environment group** — protected species, Natura 2000, cumulative effects Each group meets monthly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Form an Association (Loi 1901)

In France, the natural vehicle is a **registered association** under the *loi 1901*: it is quick and cheap to create, can collect donations, speak for the community, and — crucially — with time and an **agrément** (official environmental approval) can obtain **standing to litigate**. Formalise it early: a name, statutes, a bureau (president, treasurer, secretary), and a clear object referring to the protection of the environment and the local setting.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting (*réunion publique*)

Hold a public meeting where the community sets out its concerns to itself, to the *maire* and local elected officials, and to press. A serious, informational meeting carries more weight with decision-makers than a protest at launch. Typical 3-hour shape: welcome → project explanation → community concerns (each person 3-5 minutes) → expert Q&A (an ecologist, a health voice, a legal voice) → next steps. Invite your *conseillers municipaux* and, where relevant, the *député*.

Step 2b: Opposition Materials (Factsheets)

One page. Decision-makers won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the evidence base → contact/resources. Print 1,000; distribute at shops, the *mairie* noticeboard, the market, medical practices; post a digital version. Cost: ~€250.

Step 2c: Observations During the Enquête Publique (the decisive record)

The most valuable "signatures" are **individual observations lodged during the enquête publique**, each raising real legal grounds, plus a **pétition** for the wider count. Help residents file observations (in the register at the *mairie*, or online), each in their own words, citing specific grounds (impact on protected species, wetland, water, the inadequacy of the *étude d'impact*, inconsistency with the PLU). A large, well-argued body of observations pushes the *commissaire enquêteur* toward an unfavourable *avis* — a serious obstacle to the project. Cost: ~€50.

Step 2d: Media Coverage at Launch

Release data + observations together = a story. (Full press-release example is in Section 9, 9G.) Phone reporters, then email the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental federations — a departmental or regional affiliate of **France Nature Environnement (FNE)**, the **LPO** (bird protection), local naturalist associations — plus farming groups, hunters' and fishers' associations where interests align, business and tourism operators who lose from the project, and residents' associations. An FNE affiliate or an *agrée* association brings both expertise and **standing**. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

Tailored asks: - **FNE / naturalist association**: "We need ecological expertise for the protected-species argument — can you review the *étude d'impact*?" - **An approved (*agrée*) association**: "Would you be willing to be a co-claimant in any *recours*?" - **Farmers**: "This takes farmland and threatens the water table — will you file observations?" - **Tourism operators**: "This affects the landscape your business depends on — can you speak to the economic impact?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting is faster but can fracture.

Step 3c: Coordinated Public Work

Assign leadership by strength: environmental messaging to the naturalist association; water and farmland to the farmers; health to a health voice; media to whoever has the contacts; legal to the *agrée* association working with a lawyer. Sequence activities so each builds momentum (coalition launch → data release → rally → observation-count milestone).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline.

Step 4a: Public Demonstrations (*manifestations*)

Monthly, same time and place, growing attendance — outside the *mairie*, the *préfecture*, or at the site. Handle logistics: the required **déclaration** to the authorities in advance, marshals, accessibility, and a sound system for 100+. Momentum matters: “50 gather” becomes “gathering grows to 200.”

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (observation milestone → expert finding → coalition growth → rally → decision date).

Step 4c: Common Opposition Failure Points (How to Prevent)

Failure Point 1: Burnout (Months 4-8). Prevent it: monthly (not weekly) meetings; celebrate milestones; fund one part-time coordinator (~€400-700/month) so volunteers don’t carry logistics; schedule breaks; keep a public progress tracker. Campaigns that bring in a part-time coordinator when founders tire tend to last for years; those that don’t often collapse around month six.

Failure Point 2: Coalition Conflict. Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership.

Failure Point 3: Competing Funding. Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.

Failure Point 4: No Clear Wins. Name milestones as victories (500 observations, a 200-person rally, an unfavourable *avis* from the *commissaire enquêteur*) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (EUR)

Item	Cost
Factsheet printing (1,000 copies)	€280
Website/email hosting (annual)	€180
Venue hire + supplies	€350
Outreach travel	€300
Observation/petition materials	€50
Demonstration supplies (signs, sound)	€500
Coalition meeting costs	€180
Part-time coordinator stipend (8 hrs/wk × €16/hr × 52)	€6,656
Social-media management (3 months part-time)	€1,300
Fundraiser/event costs	€600
TOTAL	€10,396

Funding the campaign. Money typically comes from four places: individual donations (local collections, online *cagnottes* such as Leetchi or HelloAsso, and dedicated legal-cost appeals); grants from environmental and community funders (long lead times — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). A registered association can also issue receipts for tax-deductible donations once eligible. Aim to raise half the budget by month 6 and the rest by month 12. **Reductions:** use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~€6,600.

STEP 4: LEGAL CHALLENGES — USING THE PROCEDURE AND THE ADMINISTRATIVE COURTS

Plug these in — who fights beside you (many free of charge):

Legal help and expertise: - **France Nature Environnement (FNE)** — *fne.asso.fr* — the main federation of environmental associations; its affiliates hold *agrément*, litigate, and support local groups. - **LPO** (*Ligue pour la protection*

des oiseaux) and local naturalist associations — ecological expertise for the protected-species argument. - Specialist environmental *avocats* act for communities; legal costs can be crowdfunded (e.g. HelloAsso, Leetchi).

Case law and texts: Légifrance — *legifrance.gouv.fr* — free access to French law and to court decisions; the administrative courts (*Conseil d'État, cours administratives d'appel, tribunaux administratifs*) publish major rulings.

Integrity and anti-corruption: the **HATVP** (*hatvp.fr*); the **AFA** (*Agence française anticorruption*); the **PNF** (*Parquet national financier*); the **Défenseur des droits** (including whistleblower protection).

- General or less specialised representation: 25-35%
- **A key advantage:** approved environmental associations (with *agrément*) have **standing** to litigate, the federations (such as **France Nature Environnement**) bring expertise, and a *référé-suspension* is comparatively quick and inexpensive — so a well-founded challenge is not gated by wealth.

French legal strategy has three tracks, and the second is unusually powerful here.

TRACK 1: PARTICIPATION (the front door)

Most fights are shaped here, on the record, before any court is involved.

- **File observations during the *enquête publique*.** Anyone can lodge observations, on the register at the *mairie* or online. Observations that cite real **legal grounds** — impact on protected species, wetland destruction, an inadequate *étude d'impact*, inconsistency with the PLU — carry weight; “we don’t want it” carries little. A strong, well-argued body of observations pushes the **commissaire enquêteur** toward an **unfavourable avis**, which is a real obstacle and a useful legal hook.
- **Use the *Autorité environnementale*’s avis.** If the independent authority has criticised the *étude d'impact*, quote it — to the *commissaire enquêteur*, the press, and later the court.
- **Ask the authority to reconsider (*recours gracieux*).** Before or alongside going to court, you can send the *préfet* or *maire* a formal request to withdraw or amend the decision. It is quick, cheap, and can extend your window to litigate.
- **Turn the process defects to account.** France has repeatedly seen authorisations challenged over the **independence of the *Autorité environnementale*** and over defective public participation — the kind of procedural ground that recurred in the Notre-Dame-des-Landes litigation.

Why this track matters: filing well — specific, on time, grounded in the *Code de l’environnement* and the evidence — often does more than filing loudly, and it builds the record you’ll need for Tracks 2 and 3.

TRACK 2: THE PROTECTED-SPECIES AND IMPACT-STUDY LEVERS (the strongest cards)

Two grounds make this the most powerful legal tool available to French communities.

1. The protected-species *dérogation* (and the RIIPM test). It is an offence to destroy **protected species** (*espèces protégées*) or their habitat. A project that will do so needs a special **dérogation**, which the *préfet* may grant only if three conditions are met: there is **no satisfactory alternative**; the *dérogation* does **not harm the favourable conservation status** of the species; and the project answers a **compelling reason of major public interest** (*raison impérieuse d'intérêt public majeur*, RIIPM). This test is a frequent and powerful ground: in February 2025 the *tribunal administratif de Toulouse* annulled the environmental authorisations for the **A69 motorway** because the RIIPM condition was not met — the first time a motorway project had been annulled by a court on environmental grounds. (The A69 also shows the other side of the coin: the *cour administrative d'appel* later reinstated the authorisations and the *Conseil d'État* confirmed that, so the legal battle ran through three courts — a reminder that first-instance wins can be reversed on appeal.)

2. A defective impact study. The *étude d'impact* must properly assess the project’s effects and show it has followed the **avoid-reduce-compensate** sequence (*ERC*). An impact study that ignores an impact, offers “compensation” instead of avoidance, or is contradicted by the ***Autorité environnementale*’s avis**, is a strong ground to annul the authorisation.

Standing and speed — why you can get to court. Environmental associations that hold an **agrément** have standing to bring these cases, and individuals with a personal interest (*intérêt à agir*) can act too. A **référé-suspension** (an urgent procedure to suspend a decision quickly, where there is urgency and a serious doubt about its legality) lets you ask the court to **suspend** a decision quickly, before the full hearing, where there is **urgency** and a **serious doubt** about the decision’s legality. Combined with the federations’ expertise, this means a community with a genuine legal point can get it before a court, fast.

TRACK 3: JUDICIAL REVIEW (the *recours*)

When a decision is unlawful, you challenge it before the **administrative courts** by a **recours pour excès de pouvoir** (an action before the administrative court to annul an unlawful administrative decision) — an action asking the court to **annul** an unlawful administrative act. The route runs **tribunal administratif → cour administrative d'appel → Conseil d'État**. Common grounds: an unlawful protected-species *dérogation*, a defective *étude d'impact*, a flawed public-participation or Autorité-environnementale process, or a conflict with the PLU. **Deadlines are short — commonly two months** from publication or display of the decision. At the hearing an independent **rapporteur public** (the independent magistrate who gives a reasoned opinion to the administrative court before it decides) gives a reasoned opinion.

Who can help. Approved associations and the **FNE** federations litigate these cases and can be co-claimants; specialist environmental *avocats* act for communities; and legal costs can be crowdfunded or, in some cases, met by legal aid. Ask early about standing, grounds, deadlines, and the modest risk of a costs order.

Legal Strategy Decision Tree

START: Is an enquête publique or authorisation procedure open?
└ YES → File observations NOW (Track 1). Build the record.
└ NO → Has the authorisation been signed/published? Note the SHORT (≈2-month) deadline.

Q1: Is there a legal defect the court could annul?
└ NO (lawful process, you just disagree) → No strong challenge; focus on opposition + media.
└ UNCLEAR → Take advice from an FNE affiliate or an environmental avocat.
└ YES (unlawful protected-species *dérogation* / no RIIPM; defective *étude d'impact*; flawed participation or Ae process; PLU breach) → Continue.

Q2: Budget?
└ €0 → Work with an approved (*agrée*) association as co-claimant; crowdfund.
└ €0-8K → Association- or lawyer-led *recours* + *référé-suspension*.
└ €8-45K → Full *recours* + *référé*, combined with opposition + media.

Q3: Is harm imminent once works start?
└ YES → File a *référé-suspension* (needs *urgence* + *doute sérieux*) to freeze works.
└ NO → The *recours* proceeds on the normal timetable.

RECOMMENDED PATHS
Path A — Clear protected-species / impact-study defect: *recours* + *référé-suspension* with an *agrée* association + Track 1 record + media. Highest ceiling.
Path B — Arguable but not clear-cut: build opposition + media; take advice; litigate if a defect crystallises.
Path C — No legal defect: don't litigate. Win it politically on the record and in the press.

Litigation Success Factors

Litigation succeeds when **combined** with the other steps: - Litigation alone: 20-30% - Litigation + opposition: 35-45% - Litigation + opposition + media: 50-70% - A clear defect — an unlawful protected-species *dérogation* or a defective *étude d'impact* — can exceed these at first instance (as at Toulouse on the A69), though outcomes can be reversed on appeal.

A court that sees a genuine legal defect, plus visible organised opposition, plus press coverage, treats the matter as serious.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition reads as a niche dispute. Build opposition; litigate with it visible.
- **Missing the two-month deadline.** The window to challenge an authorisation is short and strict.
- **Weak grounds.** “This project is harmful” is an opinion, not a legal ground. “The *dérogation espèces protégées* is unlawful because the project does not meet the RIIPM test” is a ground a court can rule on.
- **Ignoring standing and the *référé*.** Don't assume you can't get to court — an *agrée* association and a *référé-suspension* may open the door quickly.

Turning Your Evidence Into the Arguments That Work

How the evidence is framed decides most cases. One pattern holds across jurisdictions: courts rule for challengers on procedure and specific legal duties more often than on the merits of the science. A judge will rule that a required step was skipped, but is reluctant to substitute their own judgment for the agency's on whether a project is too harmful. Aim the strongest evidence at the arguments courts will grant. In rough order of reliability:

1. **A required procedure was skipped or faked** — a mandatory hearing never held or staged, a comment period cut short, an approval issued before a required review concluded, notice never properly given. This is the most reliable ground. Build it from the official file and correspondence (Public Records & FOIA lens) and your own record of the participation windows.
2. **Serious objections went unanswered.** Where the authority must consider substantive objections, an approval that ignored them is exposed. This is one reason to file written observations even when it feels futile — they become the record the court reads.
3. **A hard legal standard was breached** — a protected-area or setback rule, a pollution limit, a forbidden activity in a protected zone, a bonding or insurance requirement never met. These are the strongest substantive arguments, because they ask the judge to read a rule, not weigh science. Build it from the study's own admissions set against the limit, your baseline data, and the register that defines the standard (Environmental & Regulatory lens).
4. **The study was legally defective** — missing seasonal surveys, no cumulative-impact analysis, ignored alternatives, a baseline too thin to support the conclusion. Build it from the developer's study read against your independent baseline and expert review (one credible expert report anchors the case).
5. **Required consultation of affected or Indigenous communities was skipped.** Where consultation is legally owed and was omitted or reduced to a formality, that alone can void an approval and it draws outside attention.
6. **The decision-maker was biased or conflicted** — an undisclosed financial interest, a decision that overrode the technical staff without reason, the revolving door. Build it from the ownership timeline, asset declarations, and corporate records (Property & Financial, Corporate & Ownership, and Contracts & Money lenses).

Two rules carry across all six. Where you can phrase a point as “a rule was broken,” do — it is more winnable than “the agency was wrong.” And where your jurisdiction recognises a precautionary principle, argue that a credible risk of serious or irreversible harm justifies protection; you need not prove the harm is certain. File before the harm is irreversible: a court protects what still exists more readily than it restores what is gone, so an injunction or suspension sought before the ground is cleared is the request that most often works, and it buys the time a full case takes.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

France has a strong national and regional press, plus dedicated investigative and environmental outlets, that cover exactly these fights — and a record of that coverage shifting outcomes.

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don't care about: your opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION - **Bad:** “Residents oppose the project.” (no data, no specific consequence, nothing new) → ignored. - **Good:** “Independent survey finds a protected species the *étude d'impact* missed; the *préfet* decides on [date].” → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

The **Watchdogs & Databases** lens on the map lists the investigative outlets and reference collections that cover this beat where you are.

- **Regional press** (e.g. *Ouest-France*, *La Dépêche*, *La Voix du Nord*) and **France 3 régions** / local radio — the audience that reaches your *maire* and *préfet*.
- **Le Monde** and national desks — for projects with wider significance.
- **Mediapart** (investigative) and **Reporterre** (environmental) — for deeper accountability stories.
- Specialist environmental press (e.g. *actu-environnement*) for the professional audience.

Building Reporter Relationships (The Key)

Reporters don't ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local/regional reporters (environment, local-government, health rounds). **Phone** first: “I saw your piece on [similar story]. We've got a

similar situation in [place] and I think your readers should know.” Then keep the relationship warm over months — a relevant article, a data tip, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (call five reporters)
- Month 2: first story (observation milestone)
- Month 3: press event releasing the survey/study; expert available
- Month 4: coalition announcement
- Month 5: rally coverage
- Month 6: decision-date coverage

Real Media Dynamics (French grounding)

- **Coverage plus persistence can end a project:** Notre-Dame-des-Landes combined decades of local organising, an occupation, national coverage, and legal action — the mix that led the government to abandon the airport in 2018.
- **A live court case is a running story:** the A69 litigation, moving between the *tribunal administratif*, the *cour administrative d’appel*, and the *Conseil d’État*, kept the project in the national press for years and framed the wider debate.
- **Independent evidence beats the developer’s study:** an independent ecological, water, or air-quality analysis that contradicts the developer’s optimistic *étude d’impact* lets the press write “experts dispute the developer’s figures,” and decision-makers take notice.

Plug these in — the outlets and desks that cover this beat:

Investigative and environmental media: *Le Monde*; *Mediapart*; *Reporterre*; *actu-environnement*; regional press (*Ouest-France*, *La Dépêche*, and others).

avocat* or an FNE affiliate before relying on this.*

Media Measurement

Track cumulative stories and reach month over month. **Success indicators:** regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. **Failure indicators:** no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.

HOW THE FIVE STEPS COMPOUND

Now that all five steps are on the table, here is how they stack — and which ones carry the most weight when combined.

Effectiveness Visualization

SUCCESS PROBABILITY (Authorisation Annulled/Refused/Modified/Withdrawn)

CLEAN DECISION SCENARIO:

All 5 Steps Combined:  65-75%

4 Steps Combined:  55-65%

3 Steps Combined:  45-55%

2 Steps Combined:  30-40%

Single Step:  5-20%

WITH MODERATE TILT FACTORS:

(Strong pro-development policy, or a developer-funded impact study)

All 5 Steps Combined:  40-45%

4 Steps Combined:  30-40%

3 Steps Combined:  20-30%

2 Steps Combined:  15-25%

Single Step:  3-12%

WITH SEVERE TILT FACTORS:

(A project declared in the public interest, developer-only assessment, heavy political backing)

All 5 Steps Combined:  25-30%

4 Steps Combined:  18-24%

3 Steps Combined:  12-18%

2 Steps Combined:  8-15%

Single Step:  2-8%

One important point: a single clear legal defect — most powerfully, an unlawful **protected-species *dérogation*** (as at first instance in the A69 case) or a defective impact study — can lead the administrative courts to annul an authorisation even where the politics favour the project, because the court is applying a legal standard the *préfet* cannot ignore. (Outcomes can also be reversed on appeal, so the legal battle often runs through several courts.)

Step Importance Ranking (When All Combined)

1. OPPOSITION BUILDING (Step 3)  25%

Why: creates political pressure, visible to decision-makers, enables other steps

2. DOCUMENTATION (Step 2)  22%

Why: provides ammunition for legal/media, grounds opposition in facts

3. MEDIA STRATEGY (Step 5)  20%

Why: makes opposition/legal/documentation visible, creates political cost

4. LEGAL CHALLENGES (Step 4)  18%

Why: buys time, creates court pressure — and holds the protected-species and impact-study levers

5. TARGET ID (Step 1)  15%

Why: foundation — if wrong, everything fails

Real insight: a large, organised, visible community that has also filed sharp, well-grounded observations during the *enquête publique* is more persuasive than perfect documentation or a brilliant legal argument standing alone.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the *Code de l'environnement*/the PLU and the evidence — that is what gets read and acted on. The legal-challenge letter and press release are 8F and 8G.

8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – [the préfet / the maire] decides [date]

Hi [Reporter first name],

I follow your coverage of [round / recent story]. We have something in [place] your readers should know about, and there's a clear news hook.

In one line: [independent survey / new evidence] shows [quantified finding – e.g. "a protected species the étude d'impact missed"], and [the préfet / the maire] decides on [date].

Why it's newsworthy: it's new (just released), specific (affects [# people / hectares / a protected species]), and time-sensitive (decision [date]).

I can send the full report and connect you with [one named expert] for an interview. Would a quick call this week work?

Thanks,
[Name] – [Association] – [phone] – [email]

8B. Email / letter to the maire, a councillor, or the préfet

Subject: [Refuse / attach strict conditions to] [project] – dossier [ref]

Madame / Monsieur [le Maire / le Préfet / the elected official],

I am a resident of [commune] writing about the [project], on which a decision (a [permis de construire / autorisation environnementale]) is expected around [date].

The concern, briefly: [one or two specific grounds – e.g. "the destruction of a protected species and a wetland, and an étude d'impact that does not properly follow the avoid–reduce–compensate sequence"].

I am asking you to [specific, achievable action – e.g. "refuse the authorisation," or "require real avoidance and compensation, an independent ecological follow-up, and strict conditions"].

[If true:] [#] residents have filed observations during the enquête publique, and these organisations share the concern: [FNE affiliate / farmers / naturalist association].

I would welcome a meeting and can share our full evidence.

Respectfully,
[Name], [address in the commune], [phone], [email]

8C. Observation during the enquête publique (the decisive record)

To: [the commissaire enquêteur, via the register at the mairie or the online portal for the enquête publique on [project]]

Observation objecting to the [project]. Enquête publique closes [date].

1. Who I am: [name], [address], [interest].

2. Grounds (with evidence):

- a. [Protected species] – the project will destroy [species] and its habitat; the dérogation is not justified because [no satisfactory alternative / no compelling reason of major public interest – RIIPM]. (Attach evidence.)
- b. [Wetland / water] – the project drains a zone humide / affects [river], contrary to the loi sur l'eau.
- c. [Inadequate étude d'impact] – the study fails to follow the avoid–reduce–compensate sequence and is contradicted by the Autorité environnementale's avis on [points].
- d. [PLU / urbanism] – the project conflicts with [zone / rule].

3. What I ask: that the commissaire enquêteur give an UNFAVOURABLE avis and that the authorisation be REFUSED; alternatively, [strict conditions].

[Name] – [contact]
Attachments: [baseline / impact / health report]

8D. Coalition outreach email (to an organisation)

Subject: [Organisation] + [project] – a specific ask that fits your work

Bonjour [Name],

I'm [name] with [association] in [place]. We're working on [project], which [one-line stake]. I'm getting in touch because this connects directly to [organisation]'s work on [their aim].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your aims: [tailored ask – e.g. "review the biodiversity section of the étude d'impact," or "be a co-claimant in a recours as an agréée association," or "file observations on the water impacts by [date]"].

If helpful, I can send a one-page brief and arrange a short call.

Thanks for considering it,
[Name] – [Association] – [contact]

8E. Records request (right of access to administrative documents)

Subject: Request for administrative documents – [project]

To: [the mairie / préfecture / agency]

Under the right of access to administrative documents (droit d'accès aux documents administratifs), I request copies of the following about [project]:

- the full étude d'impact and its annexes;
- the avis of the Autorité environnementale and of the consulted services;
- correspondence between [the préfecture / the mairie] and [the developer], [date] to [date];
- the protected-species dérogation file and any expert reviews.

Please provide these electronically. If any document is refused, please give the reasons; I reserve the right to seise the CADA (Commission d'accès aux documents administratifs) and, if needed, the administrative court.

[Name] – [contact]

8F. Legal challenge — pre-action / recours letter

NOTE: Deadlines are SHORT and STRICT – a recours against an authorisation is usually within TWO MONTHS of its publication or display. Standing is easiest through an approved (agréée) association; a référé-suspension can freeze works quickly (it needs urgence + a serious doubt about legality). Contact an environmental avocat or an FNE affiliate IMMEDIATELY.

RECOURS GRACIEUX / MISE EN DEMEURE
[Date]

To: [the préfet / the maire] – author of the decision
From: [claimant – resident / agréée association], [contact]

1. The decision challenged: [permis de construire / autorisation environnementale], reference [ref], dated [date].
2. Grounds:
 - Ground 1 – Unlawful protected-species dérogation: the project does not meet the RIIPM test / there is a satisfactory alternative / it harms the species' conservation status.
 - Ground 2 – Defective étude d'impact: [impact not assessed / ERC sequence not followed / contradicted by the Autorité environnementale's avis].
 - Ground 3 – [Procedural defect / conflict with the PLU / flawed participation].
3. We request that the decision be withdrawn within [two months], failing which a recours pour excès de pouvoir (and, if works are imminent, a référé-suspension) will be filed before the tribunal administratif.

[Name / avocat / association] – [contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]
[Subtitle: consequence + timeliness]

[DATELINE: Town / Date]

[LEAD – answer "why now?"]
[Local association] released [study / findings] today showing [specific finding] affecting [# of people / hectares / a protected species].

KEY FINDINGS

- [Quantified impact with citation]
- [Quantified impact with citation]
- [Quantified impact with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]
"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; reference a documented case where relevant]

[DECISION POINT – create urgency]
[The préfet / the maire] decides on [date]. The enquête publique closes [date].

[CALL TO ACTION] To file an observation: [how, via the register or portal].
For more: [contact].

CONTACT: [Name / Association / Phone / Email]
ATTACHMENTS: full report, technical summary, methodology, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the budget branches, and the protected-species and impact-study levers that are often the strongest cards in France.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because they depend on the development's money or jobs, rely on the developer's own impact study, or face strong political pressure to say yes. It rarely means anyone broke the law. Here is how it works — and how communities win anyway.

Important Caveat

This section describes patterns from documented French dynamics and public policy — local revenue and jobs, developer-funded impact studies, a project labelled in the public interest, and the tightening response to protest. It is not a statistical claim about "X% of all decisions." Read it as: "where these patterns appear, here is what happens and what it means for opposition."

What This Tilt DOES (and DOESN'T DO)

DOES: create financial incentive to approve (the *taxe d'aménagement*, jobs, local activity); bias information (developer-funded *études d'impact* read optimistically); advantage well-resourced developers (better consultants, *avocats*, appeals); strengthen the State's hand when a project is declared of public interest or given a **DUP**; and — a real feature in France — expose protest to public-order policing, occupation clearances, and, at times, attempts to dissolve activist collectives. **DOESN'T:** guarantee approval; make opposition impossible; remove the protected-species and impact-study rules; or prevent refusals, conditions, suspension, and delay.

Analogy: a tilted system is like playing with the pitch sloped against you. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, and your legal grounds cleaner.

Documented French Dynamics

Persistence and law can end a project (Notre-Dame-des-Landes). Despite decades of official backing, the Nantes airport was abandoned in 2018 after sustained opposition, occupation, and legal action. **Lesson:** even a State-backed project can fall when opposition is durable and the legal and political costs mount.

A court can override the politics — but the battle runs through several courts (A69). The A69 authorisations were

annulled at first instance on the protected-species test, then reinstated on appeal and by the *Conseil d'État*. **Lesson:** the legal levers are real, but plan for a long fight through the court hierarchy.

Developer-funded assessment. *Études d'impact* are commissioned by the developer. Independent survey work that contradicts them — a missed protected species, an understated wetland — is one of the most valuable things a campaign can produce, and can feed a critical *avis* and a *recours*.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): the *maire* or *préfet* decides with genuine scrutiny; no overriding public-interest label; a clear legal defect exists; the Autorité environnementale is critical. → 65-75% with all 5 steps. Proceed with standard opposition.

YELLOW FLAG (moderate tilt): strong pro-development policy and a developer-funded *étude d'impact*, but independent evidence is possible and a legal ground is arguable. → 40-45% with all 5 steps; often win conditions and compensation even if not a refusal. Proceed; prioritise the protected-species/impact-study ground and conditions.

RED FLAG (high tilt): a project declared in the public interest or given a DUP; heavy political backing; challenge relies on interpretation. → 25-30% to stop; 50-60% to modify/delay. Decide whether delay/conditions justify the investment; lead with the cleanest legal ground; build power for the next fight.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

When procedure and legal routes are exhausted, some French communities and land defenders have engaged in direct action — occupations (a ZAD, “zone to defend”), blockades, and mass mobilisations (as at the *mega-bassines* protests at Sainte-Soline). This is descriptive of what has occurred, not guidance.

Documented consequences under French law: occupations are cleared by court-ordered *expulsion* and policing; blockades and unauthorised gatherings can bring criminal charges; and the State has at times sought to **dissolve** activist collectives (in 2023 the government dissolved *Les Soulèvements de la Terre*, a decision the *Conseil d'État* later overturned). A criminal record can affect employment. Direct action has produced delay and disproportionate media attention in documented cases, but on its own rarely stops a project permanently; combined with legal and organising work it is more consequential. Anyone considering it should understand the specific legal risks and take advice first.

A security-culture note — the aboveground/underground line. Security writers in the resistance literature draw one hard distinction that everyone weighing any form of action should understand. Everything in this guide — the filings, the coalitions, the hearings, the media work — is **aboveground** organizing, and it only works in the open: “There is no way to effectively do aboveground work and keep your identity hidden... Aboveground movements can only build numbers and public solidarity by being public, open, and expressing support of the movement” (dgrnewsservice.org/civilization/repression/an-introduction-to-security-for-activists-organizers-and-revolutionaries/). The same literature is equally blunt about the choice itself: “every person in a resistance movement must decide for her- or himself whether to be aboveground or underground. It is essential that this decision be made; to attempt to straddle the line is unsafe for everyone” (dgrnewsservice.org/resistance/organizational-structures-for-resistance-movements/). Whatever any individual decides, mixing the two modes endangers both that person and everyone organizing beside them — an aboveground campaign is safest, strongest, and most credible when it is exactly what it appears to be.

Honest Assessment

Where the system is tilted, opposition using procedural and legal methods has lower odds of an outright stop — but still reliably wins refusals or conditions, forces delay (often long), imposes political cost, builds durable community power, and creates a record for a *recours*. And France offers genuine equalisers: independent administrative courts that can annul an unlawful authorisation, a high legal bar for harming protected species, an independent Autorité environnementale, and associations with standing to litigate. Neither scenario makes opposition futile.

SECTION 10: WHEN IT'S ACTUAL CORRUPTION (AND HOW TO EXPOSE IT)

Section 9 covered a system **tilted toward approval** — pressures that are usually lawful. This section covers something narrower and more serious: **actual corruption** — the unlawful or unethical use of a public position for private benefit, or improper influence over a decision. It is rarer than ordinary bias, but where it exists it is both a wrong worth exposing and, strategically, a project's single greatest vulnerability. France has strong integrity bodies to receive these matters — but handle them carefully, because getting the facts wrong exposes you to a defamation claim (*diffamation*).

How big is the problem? The most widely cited figure comes from the World Economic Forum: corruption costs at least **US\$2.6 trillion a year — about 5% of global GDP** — a figure cited before the UN Security Council. Because it is a

percentage, the dollar amount grows with the world economy: applied to 2022 global GDP (~US\$101 trillion) it works out to roughly **US\$5 trillion a year**, and a January 2026 Baker Tilly analysis, with global GDP projected at ~US\$115 trillion for 2025, puts it at approximately **US\$5.75 trillion annually**. Roughly one dollar in twenty moving through the world's economy is lost to corruption — and infrastructure, land, and extractives are where it concentrates.

What counts as corruption (a spectrum from illegal to merely unethical)

- **Bribery and influence-peddling** (*corruption, trafic d'influence*) — money, jobs, or favours in exchange for a decision or an authorisation.
- **The illegal taking of interest** (*prise illégale d'intérêts*) — an elected official or public servant taking or keeping a personal interest in a matter they oversee. This is a specific criminal offence in France (Article 432-12 of the *Code pénal*), and elected officials are regularly prosecuted for it.
- **Undisclosed conflicts of interest** — a decision-maker with a hidden financial stake (land near the site, shares in the developer, a family tie).
- **The revolving door** (*pantouflage*) — officials and the developer's staff or consultants moving between each other.
- **Improper gifts, hospitality, or funding** flowing from a developer to the people deciding its project.
- **Insider land speculation** — acquiring affected land using non-public knowledge of a coming *PLU* change or authorisation.
- **Favouritism in procurement** (*favoritisme*), falsified or suppressed studies, cronyism, and improper pressure.

Red flags to watch for

- A decision that overrides the technical services' recommendation with thin or shifting reasons.
- Sudden reversals, rushed timelines, or an authorisation pushed through quietly.
- An elected official who did not **abstain** (*se déporter*) despite a personal interest.
- Off-record meetings between the developer and decision-makers.
- Gifts, hospitality, trips, or funding flowing from the developer to decision-makers or their families.
- A decision-maker — or a relative — owning affected land or a stake in the developer.
- The same small circle of firms, consultants, and officials recurring across decisions.
- Missing minutes, unusual redactions, "lost" documents, or refusal to disclose.

How to document and investigate it (follow the money — carefully)

- **Requests for administrative documents** (and, if refused, the **CADA**) for correspondence, diaries, consultant contracts, and internal notes.
- **Declarations of interests and assets** — many elected officials and senior officials must file these with the **HATVP** (*Haute Autorité pour la transparence de la vie publique*); check for the affected asset.
- **Land registries and company records** — who owns the affected land and who profits.
- **Council minutes and voting records** — and note whether an interested councillor took part.
- **Build a timeline:** interest or relationship → meeting, gift, or funding → decision. Corruption is almost always shown by **pattern and timing**, not a confession.
- **Whistleblowers** (*lanceurs d'alerte*) often break these stories; they are protected by law (the *Sapin II* law and its 2022 reform), and can report to the *Défenseur des droits*. Protect them.

The legal lever: an interested decision-maker can void a decision

Two French features make this powerful. First, the principle of **impartiality** (the legal requirement that a decision-maker be free of a personal interest; breach can annul the decision): an elected official with a personal interest must **abstain** (*se déporter*), and a municipal-council decision in which an **interested councillor** (*conseiller intéressé*) took part is unlawful (article L.2131-11 of the *Code général des collectivités territoriales*) and can be **annulled** by the administrative court — without any need to prove a bribe. Second, the criminal offence of **prise illégale d'intérêts** (the criminal offence of an official taking or keeping an interest in a matter they oversee (Article 432-12 of the *Code pénal*)) targets exactly that situation. So documenting an undisclosed interest can be both a **ground to annul the decision** and a matter for the prosecutor.

Where to report it

- The **HATVP** — for conflicts of interest and false declarations by officials.
- The **AFA** (*Agence française anticorruption*) — the national anti-corruption agency.
- The **PNF** (*Parquet national financier*) — the national prosecutor for corruption and serious financial crime — or the local *procureur* for suspected offences.

- The **Cour des comptes** and regional audit chambers — for misspending.
- The **Défenseur des droits** — including for whistleblower protection.
- **Investigative outlets** — *Mediapart, Le Monde, Reporterre* — in parallel with the official channels.

Strategy: exposing a tainted process can beat a project

A credible, documented corruption story does several things at once: it triggers an investigation; it can annul the decision (an interested councillor, an unlawful process); it flips media coverage from “local dispute” to “scandal”; it splits the political support behind the project; and it damages the developer’s reputation and financing. **Exposing a tainted process is often more powerful than arguing inside it.**

Do this responsibly — and safely

- **Stick to documented facts.** Publish the records and the timeline and let readers draw conclusions; frame anything unproven as a question, not an accusation.
- **Mind diffamation.** Publicly accusing a named person of a crime you cannot prove is legally dangerous in France. Work with an *avocat* and an experienced journalist before publishing allegations.
- **Report through the integrity bodies and the *procureur* in parallel** with any media, so there is a formal record and an investigation can follow.
- **Protect whistleblowers and sources.**
- **Don’t cry “corruption” without evidence.** Calling ordinary, lawful bias (Section 9) “corruption” destroys your credibility and can expose you to a claim. Keep the two separate — which is exactly why they are separate sections here.

Corruption Isn’t One Thing — Map It by Actor

The section above treats misconduct as one category. It usually sits in specific institutions, and which institution is compromised changes what you can rely on. Before staking a campaign on the courts, the hearing, or an audit body, assess how clean each actor in your project’s chain is — from your own knowledge, the reporting in the Watchdogs lens, and the country’s corruption record.

Rate each link, and note what capture tends to look like:

- **Planning commission / environmental authority (approves the project).** Signs: studies passed without scrutiny, conditions never enforced, a large project split into small pieces to dodge assessment. If this body is compromised, the administrative route is weak — move earlier to the courts and to public pressure.
- **Local council / municipality.** Signs: rushed zoning changes, land deals, a mayor who is also the project’s advocate. If the municipality is the problem, the higher level of government and the courts become the arena, and the conduct itself becomes evidence.
- **The judiciary (judges and clerks).** The decisive link. Where judicial processes are captured or routinely corrupt, a technically strong court argument still should not be expected to win — a compromised court can ignore precedent, delay an injunction until the site is cleared, or rule against the evidence. Where that is the reality, use litigation to buy time and build a record, and put the real weight on political cost, media, higher or appellate courts, and outside bodies (regional human-rights systems, international finance-standard complaints) beyond the local court’s reach.
- **Police and prosecutors.** Signs: charges against protest leaders, silence on the developer’s violations. This affects how you organise — assume protest may draw legal harassment, keep everything lawful and documented, and arrange defence counsel before you need it (see the security-culture note in the direct-action section).
- **Legislators / provincial or national government.** Signs: laws rewritten to favour a project, protections repealed, “strategic project” designations that fast-track approval. When the rules themselves are being changed, defending the existing law — and any non-regression principle — becomes the fight.
- **Federal / national agencies.** Signs: a permit issued over the technical staff’s objections, an inspectorate that does not inspect. If the national regulator is compromised but the courts or an audit body are not, route around it.
- **The developer and its consultants.** The private side: a study written to a set conclusion, undisclosed ties between an “independent” consultant and the proponent, movement of staff between company and regulator. This link is often the most documentable, and exposing it can undo a decision the public bodies would not have questioned.

Rate each actor green (reliable), yellow (compromised, use with caution), or red (captured — do not stake the campaign on it), then aim at the cleanest remaining lever. A captured planning commission with clean courts points to litigation; clean media with everything else compromised points to a public and political fight whose aim may be to raise the cost and build a record for the next project. Where the capture involves unlawful conduct, it is no longer only a barrier — it is the corruption case in the section above, and often the project’s greatest vulnerability.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target and decision-maker (Step 1); begin baseline surveys (Step 2); form the association and start one-to-ones (Step 3); prepare for the *enquête publique* and make first reporter calls (Steps 4-5). *Outcome:* structure forming, the record beginning.

Months 2-3 — Public Launch: baseline complete; public meeting + observations drive during the *enquête publique* (Step 3); media event (Step 5). *Outcome:* opposition visible, hundreds of observations lodged, 3-5 stories.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis testing the *étude d'impact* (Step 2); expand the coalition and bring in an *agrée* association (Step 3); take legal advice and prepare grounds (Step 4); data-release press event (Step 5). *Outcome:* broad coalition, legal grounds identified, coverage expanding.

Months 4-6 — Expansion + Health Data: health/economic report (Step 2); sustained monthly rallies (Step 3); the decision (permis / autorisation) (Step 4); expert press events (Step 5). *Outcome:* a possible unfavourable *avis*, quantified impacts, regional media.

Months 6-9 — Escalation + Challenge: rallies escalating (Step 3); if authorised, a *recours* and *référé-suspension* within the two-month window (Step 4); ongoing monthly media (Step 5). *Outcome:* sustained pressure, court process live.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); hearing / positioning (Step 4); media momentum (Step 5). *Outcome:* procedure + opposition + media + law compound; refusal, conditions, annulment, or withdrawal.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — “the *dérogation* is unlawful for want of a RIIPM,” not “we oppose the project.”
2. **Multi-tactic pressure** — observations + opposition + media + legal, together.
3. **Long-term organising** — sustain 12+ months; prevent burnout.
4. **Documentation first** — build the evidence, then object and litigate on it.
5. **Coalition building** — 5-10 diverse groups, and bring in an *agrée* association for standing.
6. **Political pressure, not just legal** — the record and the press create the cost; the law buys time and can annul.
7. **Use the legal levers** — the protected-species *dérogation* and a defective *étude d'impact* are often the strongest cards.
8. **Realistic expectations** — expect conditions/modifications/delay; a refusal, annulment, or withdrawal is the bonus.
9. **Persistence** — plan for 12-24 months (and possibly several courts) and keep momentum.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout); coalition members leaving (conflict or leadership problem); no media coverage for 2-3 months; the *recours* stalling or the two-month deadline approaching; fundraising below half your target by month 6; a core organiser leaving without a successor; or someone new pushing illegal tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Authorisation refused / annulled / project withdrawn** (rarer): usually needs overwhelming opposition + a strong legal case + heavy media + low tilt. Notre-Dame-des-Landes (abandoned) shows it happens; the A69 shows a first-instance annulment can be reversed on appeal.
- **Authorisation modified** (most common victory): conditions, real avoidance and compensation under the ERC sequence, buffers, independent ecological follow-up, redesign — frequently via the *préfet* or a court.
- **Delay / attrition:** stalled for years while procedure and litigation run; costs mount and financiers lose confidence; the developer sometimes walks away.
- **Defeat:** the project proceeds. Focus then shifts to enforcing conditions and compensation, monitoring compliance, and the next opening.

Why It's Worth It — Even If You Ultimately Lose

Be honest with your community about the odds — and equally honest about what the “secondary” outcomes are actually worth, because they are not consolation prizes:

- **Conditions and monitoring protect bodies for decades.** Buffers, emission controls, closure funds, independent monitoring with public data — these are measured in children’s health and the water people actually drink, for the life of the project. Every binding condition you force is future harm partially averted.
- **Delay is real harm avoided — and real leverage.** Every year a project stalls is a year the land and the livelihoods run — and delay compounds against the proponent: financing costs, aging forecasts, expiring permits, changing governments. Some “delayed” projects simply never come back.
- **The organization outlives the fight.** The coalition, the trained monitors, the relationships with lawyers and journalists — that infrastructure fights the next application, the next route, the next permit renewal. Communities that fought “losing” battles are the ones that win the next one.
- **You change the rules for everyone.** Campaigns in this guide lost projects and won statutes, precedents, and reformed procedures the whole country then uses. Fighting at the level of one project builds law at the level of all of them.
- **You raise the price of the next project.** A proponent that spent years and a fortune on your fight prices community resistance into every future plan — and sometimes walks away before starting. Deterrence is invisible and real.
- **Compensation and dignity are not nothing.** Where harm proceeds, documented communities win remediation, compensation, and terms silent ones never see — and a community that has organised once is better prepared the next time.

Decision Point: Continue, Modify, or Reassess

Continue if the legal grounds are live, opposition is holding or growing, media is at least monthly, the coalition is stable, and the decision or deadline is not imminent. **Modify** if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, or you discover the system is more tilted than assessed. **Reassess** if, after ~12 months (and perhaps a first court), procedural and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, or resources are gone. Ask: has opposition already won partial victory (conditions, compensation, delay)? Would more effort win more, or just prolong the fight? Should energy shift to enforcing conditions, to the next project, or to changing the policy?

The Bottom Line

Opposition work can stop or significantly modify destructive projects in France — even where local revenue, jobs, and State policy point toward approval. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, and in the courts. Where the system is tilted, an outright stop is less likely, but opposition still delivers refusals, conditions, compensation, delay, and durable power.

And France offers genuine equalisers: independent administrative courts that can annul an unlawful authorisation — as happened at first instance on the A69 — a high legal bar for harming protected species, an independent Autorité environnementale, associations with standing to litigate, and, when a project truly lacks support, the possibility of outright abandonment, as at Notre-Dame-des-Landes.

Know your situation. Assess how tilted the system is, honestly. Watch for genuine corruption and refer it to the integrity bodies. Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers.

Nothing here is legal advice. Deadlines to challenge a decision are short (commonly two months) and the case law evolves quickly — get current advice from an environmental